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Article type : Article

Development Policy Review

Corruption, gender and small-scale cross-border trade in East Africa: A review

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This article has been accepted for publication and undergone full peer review but has not been through the copyediting, typesetting, pagination and proofreading process, which may lead to differences between this version and the [Version of Record](#). Please cite this article as [doi: 10.1111/DPR.12610](https://doi.org/10.1111/DPR.12610)

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Summary

Motivation: Small-scale cross-border trade is critically important to livelihoods and food security in East Africa, but bribes, harassment and violence remain a serious problem.

Based on current research, we ask which anti-corruption interventions tend to work to improve the conditions of these traders?

Purpose: This article critically and systematically reviews a growing literature on small-scale cross-border trade, corruption and gender. The aim is to synthesize and assess the current state of knowledge, highlight progress and gaps, and assess the potential of anti-corruption programs to address the needs of traders.

Methods and approach: A systematic literature review with supplementary interviews with traders and policy actors.

Findings: We found research is increasingly drawing on diversifying inter-disciplinary methods and focusing on individual trader behaviours, networks, interactions with state actors and, increasingly, on gendered dynamics; more work might focus on state actors especially the police and what determines how bribes function and their levels.

Associations, civil society and the platforms, both informal and formal, by which traders voice concern and confront government officials, as well as how traders choose between formal and informal pathways and how these pathways interact require more attention.

Policy implications: Government reforms like the One Stop Border Post, need to be better tailored to the specific, gendered needs of small-scale cross border traders. Simplifying and reducing formal border procedures, reducing tariffs, information desks and complaints mechanisms need to be improved to enhance access and accountability. Programs that support access to capital, business support, networking, and knowledge around border procedures and promote strong associations to voice the specific needs of small scale traders with government have positive impacts. Police reform tailored to border areas is needed.

Keywords: corruption, East Africa, gender, small-scale cross-border trade

1 INTRODUCTION

Small-scale cross-border trade is critically important to the well-being of many households and communities, particularly in Africa's borderlands. Such trade existed in East Africa prior to the construction of national borders within the relatively recent colonial period. This suggests that this trade emerges as part of comparative advantage across different ecological zones and regions. With the rise of formal borders, traders also take advantage of regulatory and commodity price differentials between countries to buy and sell a variety of agricultural and manufactured goods across borders; in the process they distribute food across the region contributing to food security and use their income to help sustain families and educate children (Afrika & Ajumbo, 2012; Brenton et al. 2013; Titeca & Kimanuka, 2012; World Bank, 2020).

While statistics are hard to find, estimates suggest that the volume of small-scale cross-border trade is significant (Bensassi et al., 2019; Golub, 2015; Lesser & Moise-Leeman, 2009; UNCTAD, 2019) although the extent varies from border to border (African Export Import Bank, 2020).

Further, cross-border trade constitutes the primary source of income for many of these small-scale traders and is central to livelihoods, including for those who produce traded goods, wholesalers, moneychangers and transporters as well as their families (Brenton et al., 2013; EASSI, 2012; Titeca & Kimanuka, 2012). One study estimates that small-scale trade is a source of income for 43% of the African population (Afrika & Ajumbo, 2012).

Given the clear significance of small-scale cross-border trade in Africa, research has grown. This paper systematically reviews the academic and policy literature on corruption and gender within small-scale cross-border trade for East Africa consisting of Kenya, Uganda, Tanzania, Rwanda, Burundi and South Sudan, and, where necessary, draws on interviews to fill gaps about ongoing research. The aim is to explore progress in the state of knowledge and where more work might be done as well as assess the extent to which different anti-corruption approaches draw on research and evidence and address the needs of small-scale cross border traders.

In this review, we follow Brenton and Soprano in making an important distinction between "small-scale" and "informal", as "informal" can be easily conflated with "illegal" (2018). They note that using the term "informal" to characterize this trade as a whole

"inaccurately reflects the reality of trade flows on the ground, as traders may indistinctly use both formal (gazetted state-regulated customs) and informal crossing channels (pathways that

are highly used but avoid formal crossings) depending on a variety of factors, such as the value of their consignment, the length of the queue and costs at the border, or the mood of the individual official on duty” (Brenton & Soprano, 2018, fn 1).

Informalities in cross border trade tend to emerge as a means to evade costs at formal borders that cut into higher profit margins of what was historically free trade. When barriers reach a tipping point traders switch to local trade, a phenomenon observed with the rise of Covid and Covid border restrictions (Wiseman 2020, Klopp et al 2021).

In this paper we follow the East African Community’s definition of a small-scale trader as one who typically trades goods under 2000 USD, although it is important to note that a great deal of variation exists in the kinds and value of goods traded under this amount. Small-scale traders can be fairly opportunistic in the kinds of goods they trade at any one point and often trade alone; they must be distinguished from larger scale, more politically connected traders involved in transnational smuggling networks that move high value goods like coffee (Kuhanen, 2017). This distinction can be complicated to some degree by that fact that a small number of small-scale traders sometimes carry smaller quantities of goods for larger traders who engage these traders as transporters to avoid taxes. However, this does not include the vast number of small-scale cross-border traders.

It is important to note that diverse processes and power dynamics make different kinds of informalities possible. Some processes can involve illegalities but of different kinds; illegalities in goods carried (smuggling), tax evasion, or, most commonly, evasion of formal border controls (Golub, 2015). At the same time, some small-scale traders pass through formal borders, trade legal goods and attempt to follow legal procedures (Titeca & Kimanuka, 2012). Meagher correctly warns against mischaracterization of small-scale border trade, pointing to cases where problematic discourses of “violence and criminalization” have been inaccurately applied to describe largely peaceful economic exchange by small-scale, predominantly female, cross-border traders in West Africa (2014).

Obviously, it is important to ask how small-scale cross-border traders, the majority of which are women, perceive their trade and negotiations with state actors, who are primarily male, and how they choose to move through either formal border control or informal *panya*¹ where they confront other actors, especially the police. Corruption, in the form of bribes, is a part of both formal and informal trading journeys. It is thus important to ask how different traders view the various

¹ “Panya” means mouse in Swahili and hence connotes smaller, less beaten and formal pathways.

transactions along the trading journey, decide to pay or refuse to pay bribes or formal fees, and what they think about state and policy reforms aimed at addressing border corruption, harassment and inefficiencies. To get at these questions, we see a growing number of surveys, interviews and focus groups with traders.

In addition, we also explore the extent to which gender dynamics are addressed in research on corruption in small-scale cross-border trade. At the very end of our review, we compare what we have learned about small-scale trade, gender, and corruption with predominant anti-corruption approaches. The aim is to explore how well informed these approaches are in addressing the problems of corruption facing small-scale, predominantly women, traders. We conclude with some directions for future research and some concrete recommendations for research and policy.

2 METHODS

Our review began with a cursory search for articles written over the last two decades in English on corruption and cross-border trade in Kenya, Uganda, Tanzania and East Africa. We focussed on articles in EBSCO and SCOPUS, the two most comprehensive social science databases combined with Anthropology Plus and EconLit. The search was conducted in English with initial key terms outlined in Table 1. From there, we conducted a methodology search also in English and through the Global Integrity Anti-Corruption Evidence Digital Library², a recently launched resource to support anti-corruption research. Through this search, we examined another twenty studies that explored methods in fieldwork relating to corruption and anti-corruption techniques. This included the use of monitoring, participation, and information and communication technology (ICT).

In a second stage we refined the search to the specific themes of gender, technology, police corruption, and border official corruption in East Africa, focusing most on Kenya, Uganda and Tanzania. Pertinent reviews, studies, theses, books and articles were identified to analyse this portion of the review, and we also explored the references in the papers we found. We were very aware that recent policy work is available in grey literature and were sensitive to the fact that excellent unpublished work conducted by African scholars is often found in thesis work and other forms of unpublished work and made efforts to include and refer to this important work.

Table 1. Search protocol and selection criteria

² This library was created by Global Integrity as part of its Anti-Corruption Evidence Programme and is available at <https://library.globalintegrity.org>.

Inclusion Criteria	Articles or publications from academic literature, theses and reports that incorporate the Key Terms. Published between 2000 and 2020.
Exclusion Criteria	Papers written in languages other than English. Studies focusing on gender unrelated to trade. Papers published before the year 2005. Exclude Newspaper Articles.
Key Terms	Initial: corruption, cross-border trade Methodological: ICT, information communication technology, phone, monitor*, report* Thematic: gender, police, border official, revenue authority, technology Geographic: Africa, East Africa, Kenya, Uganda, Tanzania
Electronic Databases	SCOPUS, EBSCOHost Global Integrity Anti-Corruption Literature Database.
Quality Criteria	Since this review draws on diverse studies, methodologies and disciplines, single quality criteria were not established. Resources were appraised and selected if they were deemed credible and applicable.

3 RESULTS AND DISCUSSION

We found a growing body of work consisting of over 165 articles with the vast majority focused on the institutionalized nature of corruption in the form of networks and norms, bribes and harassment with growing work on how all these aspects, and the experience of small-scale cross-border trade are gendered. Concern with gender is especially strong within policy circles working on reducing barriers and improving conditions for cross border trade including anti-corruption efforts. Below we highlight key intersecting themes that stand out from the review. We start with

research methods and then look at the content of what emerges from these different approaches and finally suggest some policy recommendations.

3.1 Research methods to study corruption and small-scale cross-border trade

Studying corruption within small-scale cross-border trade dynamics with its diverse informalities and complex set of actors and interactions presents many methodological challenges. However, we see a growing variety of approaches as well as experimentation. We also find some innovation in research approaches to better understanding the general patterns, transactions and exchanges involved in small-scale cross-border trade and growing involvement of a variety of disciplines and cross-disciplinary approaches.

Some periodic and continuous monitoring exists that involves capturing data about goods crossing different borders, but this generally does not include collecting data on the costs of bribes to move goods across the border, even though this most likely impacts the price consumers ultimately pay. The Ugandan Bureau of Statistics conducts periodic surveys of goods at crossing points, as does the Rwandan government. Multilateral institutions like the World Food Programme, Famine Early Warning Systems Network (FEWS-Net), and the Eastern Africa Grain Council also do continuous monitoring of agricultural commodities and their prices (Lesser & Moise-Leeman, 2009; World Bank, 2020; FAO, 2021; Raton, 2021). Such monitoring gives useful information on the types of goods traded, location, quantities, prices and the overall scale of this trade. This tends to be in the interest of state regulators who wish to tax border trade and is also of much importance for monitoring food security. However, it cannot tell us in much detail about the processes and transactions including corruption around this trade especially when the focus is on formal border crossings, although counting goods coming across informal versus formal crossing points, can give us a sense of the scale of formal border evasion.

To dig deeper into the complex dynamics of cross-border trade including payments, a number of valuable studies have emerged that rely on political economy, anthropology and extended on-the-ground observations and interviews in different regions (Dobler, 2016; Nugent & Soi, 2020; Titeca, 2012; Titeca & Kimanuka, 2012; Twijnstra et al., 2014). Twijnstra et al., for example, conducted fieldwork spanning five years (2010-2015) including in- depth interviews and focus group discussions to explore how traders negotiate taxes at several border posts between Northern Uganda and South Sudan. Emerging from this work is a focus on “practical norms” and “the actual rules that govern the actions of public actors” at the border (2014; 382, 2016). This work emphasizes how traders negotiate “taxes” with border officials, noting how this “hinges on the historic, geographic and cultural (informal) institutional context as well as their mutual

embeddedness in political and community ties” (2014: 383). Practical norms around extraction (formal taxes vs. bribes) appear to be co-produced by traders and officials in a context of weak state authority, and these norms may ultimately undermine or reinforce the aims of formal state rules and also shift depending on changing political economy dynamics.

A key focus of this ethnographic work is on patterns of interactions that are conceptualized as networks. Twijinstra et al. distinguish between “networks of accumulation,” which involve politically connected traders who often engage in regional and global trade and deal with higher level state actors³ with power over customs points, and “networks of survival” made up of local cross-border small-scale traders who often share life with local customs officers and engage in more localized trade.

Dobler similarly distinguishes between what he calls “green” or more localized trade that relies on foot or cycle paths, “grey” trade using roads and railroads, and “blue” trade linked to transport corridors connected to airports and seaports and hence global trade (2016). The different scales of trade and the power dynamics around them are thus reflected in the transport mode involved in the trade. Small-scale cross-border trade tends to be associated with “green” and “grey” trade linked to local and regional scales but is sometimes connected to supply chains that reach global levels, such as when traders deal in small quantities of Chinese goods.

Overall, a key aspect of this work is a focus on patterns of repeated interactions between socially-embedded actors and the connectivity between formal and informal realms, interactions which are seen by these scholars as involving culturally- and socially-embedded networks. These are conceptually distinct from simple market transactions that are often the focus of more economics-driven research. However, rarely are these networks “mapped, formally described or modelled” (Walther, 2015; 604) and at times, different networks can be conflated (Meagher, 2014). Practical norms produced within different networks are also not the same; hence work taking this approach tends to emphasize the need for close attention to political economy as well as how border areas differ. In this regard, Khadiagala notes “two contrasting spatial trajectories dominate East Africa; frontiers of insecurity and borderlands of economic prosperity” (2010; 273). Trade in these different regions may have different characteristics, including more potential illegality in places with particularly weak and contested state authority.

³ It is important to note that political actors themselves often use their power to engage in illicit trade and even customs officers can have businesses linked to trading such as broker or transporter businesses. The boundary between state actors and traders can thus be blurred.

Another body of work which tends to focus on “borderlands of economic prosperity” engages primarily with traders using surveys. Such surveys are much harder to conduct in areas that might be called “frontiers of insecurity” like in Northern Uganda and Southern Sudan (Titeca, 2012) and hence are often applied in “borderlands of prosperity”.

Researchers who have increasingly turned to surveys of traders themselves are able to get their stated perspectives, disaggregated by sex, on corruption, harassment, and other issues of concern and this starts to reveal more gendered and class dynamics and hence the varied experiences of small-scale traders.

Tyson, for example, gave a questionnaire to one hundred small-scale traders, 60% of whom were women, at places of work such as marketplaces on market days near the Busia border crossing between Kenya and Uganda (2015, 2018). She asked whether they were solicited for bribes and if so, complied. Titeca and Kimanuka conducted surveys at four border points between the Democratic Republic of the Congo and Uganda as well as Rwanda and Burundi asking questions about bribes, including the norm of “informal taxation” (2012). In 2018 the Ugandan Bureau of Statistics conducted a baseline survey under the auspices of the Great Lakes Trade Facilitation Project which asked about trader experience with incidences of harassment, including solicitation or payment of bribes, intimidation, verbal attack and physical contact (Uganda Bureau of Statistics, 2019). Overall, given the difficulties of studying informal transactions, more data on perceptions of corruption and stated bribes are being collected, but it remains extremely challenging to get representative, rigorous, gender disaggregated and quantitative data on different forms of border corruption.

An ongoing general challenge noted by researchers using surveys and most often situated in the economics or policy realms, is figuring out a representative sample for small-scale cross-border traders (Hadley & Rowlett, 2019). However, some researchers have been able to conduct a baseline through systematic sampling of traders across different markets in Busia (Siu, 2020; Wiseman, 2020). Titeca and Kimanuka used a method of random sampling - every 50th trader at the border (2012) which is bound to lead to different results than a method that samples from markets or within traders’ associations, methods which are also common. Wiseman’s recent work is an innovation in that she conducts high frequency (every two weeks) panel data from mobile phone surveys, which enable a more dynamic view of how corruption and trade conditions adjust with changing conditions at the Busia border (2020).

More recently, some researchers from within economics are turning to randomized control trials (RCTs) to study small-scale cross-border traders, gender and corruption (Croke et al., 2020;

Wiseman 2018). Croke et al. published the results of their impact evaluation of a training program for cross-border traders and officials at the border of Rwanda and the Democratic Republic of Congo. The goal was to conduct an RCT with 628 traders (314 take the training and 314 in control) to test the impacts of training on procedures and taxes with the idea that if traders, seen mostly as individual entrepreneurs, were empowered with information, they would be better able to refuse bribes. The study chronicles the challenges of conducting such studies without first building strong bonds of trust that researchers in the ethnographic tradition work hard to do (Titeca, 2012); traders gave false names and were often untraceable, and many did not do the training (Croke et al., 2020). The findings suggest that when they learned that border officials arrive at 7:30 am, many women traders got “up at dawn” to cross the border before 7:30 am, reducing their interactions and hence their bribes and potential violence. The connection between training, information acquisition, and bribe reduction remained unsubstantiated; this is the focus of another RCT in progress (Wiseman 2018). Overall, while RCTs have been considered the “gold standard” by economists, this notion has been intensely critiqued (Bédécarrats, et al., 2020), and some argue that for RCTs to be effective, they must be paired with careful ethnographic work (Buntaine, 2019) suggesting overall the need to move towards more interdisciplinary approaches (Golub, 2015).

The rise of cellphones and the possibility of crowdsourcing information also provides new ways to collect data on corruption and border experiences from traders themselves. Phones may allow traders to report incidences in real time, which also makes it easier to conduct larger-scale studies, including RCTs and surveys. Of course, some traders, especially women, may not have phones. Overall, a gender gap exists in phone ownership in low- and middle-income countries; women are 10% less likely than men to own a mobile phone and of those that do, 23% fewer women than men use mobile internet (GSMA, 2019). A class gap also exists with wealthier traders owning smartphones and the poorest traders without any phone at all. However, phone use is increasing as costs of phones and services drop, although significant variation in phone access and service costs exists across East Africa (GSMA, 2019).

Increasingly ubiquitous cellphones have also led to innovative digital platforms that provide traders with information and, in the process, collect important data. One such platform in East Africa is Sauti East Africa, a social enterprise that has developed a phone-based application to provide traders with essential information about prices, exchange rates, and border procedures and also to collect data from traders who use it (Hadley & Rowlatt, 2019). Gathering data on small-scale traders by looking at how they interact with different platforms and entities can also open up new insights (Hadley & Rowlatt, 2019). Sauti East Africa also has been working to build

networks with traders, gain their trust and advocate for them and is increasingly able to support and engage in research through its platform, a promising new tool for trade, corruption and gender research.

3.2 Corruption within small-scale cross-border trade

Corruption at borders is a longstanding global problem and can be both collusive (voluntary and benefiting both parties) or coercive (involuntary and beneficial only to the recipient of the bribe) (Sequeira & Djankov, 2014). With face-to-face, frequent interactions between traders and customs officials who have discretionary powers and are sometimes located far from central oversight, customs transactions tend to be vulnerable to varied forms of corruption (Jancsics, 2019; McLinden & Durrani, 2013). Three main and sometimes interrelated forms of corruption tend to exist at customs: theft from misreporting, theft from customs officers using poor or unclear information to overcharge traders and pocket the difference and bribes (Widdowson, 2013; Yang, 2006). Bribes can involve “speed money” or petty bribes traders pay to bureaucrats to get around hurdles as well as facilitate and speed up processes (Ang, 2020). They can also involve collusion in tax evasion, for example, when a customs official takes a bribe to misreport goods traversing the border, a process which can also lead to smuggling or more serious illegal trafficking (Titeca, 2012). In addition, borders are also areas that are under police surveillance and control, with the police able to access opportunities to extract bribes and participate in illegal activities; however, much focus on corruption at borders is on customs officials (Chene, 2018). Police are a concern at borders in East Africa but more from a security lens; corruption in border police is often perceived as enabling poor state security that could facilitate terrorism (Open Society, 2016). The problems between police and small-scale cross border traders tend to be ignored within national police reform discussions.

When looking at small-scale trade in East Africa, the most common form of what would be considered border corruption involves bribes, although as noted earlier some of these payments may be understood by the traders somewhat differently depending on institutional context and practical norms. These payments, sometimes called “kitu kidogo” “kupoza koo”, “chai” or “bakshishi” (something small, clearing the throat, tea or tip in Swahili) are linked to three main and different purposes; 1) to speed up, facilitate or get service at the formal border 2) to avoid penalties from using an informal route or 3) as a bribe to avoid paying a tax. Not paying a tax is often complicated by lack of clarity or understanding of the system of tariffs; as one Ugandan trader put it: “she felt like she was walking in the dark” (Titeca and Kimanuka, 2012: 8). However, complex and changing tariff regimes means high levels of uncertainty exist on the ground among both traders and officials (Akaezuwa et al., 2020; Titeca and Kimanuka, 2012) which can enable

the use of kitu kidogo to manage this situation and keep trade going. Sometimes also corrupt payments happen when customs officials overcharge traders who do not know the actual fees or which goods are on a restricted list which can change. Using an informal or *panya* route is also often a response to a formal border that tends to block rather than facilitate trade and to high, complicated or unclear tariffs and procedures on goods (Titeca and Kimanuka, 2012; World Bank, 2020). Once again payments to evade legal consequences of using informal routes might be seen as a facilitating trade that supports livelihoods, including that of the person taking the bribe. However, it is important to understand how different categories of small-scale cross-border traders experience and understand various types of extraction and exchange and what they consider coercive corruption (that leads to significant costs and often induces fear) compared to collusive corruption or informal “fees” that might be accepted and even seen as helpful (Sequeira & Djankov, 2014).

A trader's journey through a formal crossing point involves confronting several actors, including police, customs officials, revenue authorities and, if carrying agricultural goods, plant inspectorates or, if manufactured goods, a standards bureau. The process also involves paperwork and costs, although work in trade facilitation has meant that small-scale traders are often exempt from some taxes. Figure 1 illustrates the first border process for a small-scale Ugandan trader importing agricultural and manufactured goods into Kenya.

The trader's journey often begins with the purchase of tradable goods at a market, the choice of transportation and the gathering of relevant identification documents, including proof of origin within the East African Community (EAC) via a simplified certificate of origin⁴, ID, and relevant receipts. At the border, traders then need to fill out the applicable forms and receive approval from authorities like the Plant Health Inspectorate (unprocessed agricultural goods) or the Bureau of Standards (manufactured goods). Small-scale traders that trade in unprocessed agricultural goods are exempt from import duties, whereas those who trade in manufactured goods will have to pay a value added tax (VAT) and in some cases an excise tax for manufactured goods, depending on the good. The main difference lies in agricultural traders not being subject to excise tax or VAT. Wealthier traders often work through customs brokers or other third party operators who typically manage the relationship between customs and traders; these brokers help traders clear goods by preparing documents, calculating pay, and facilitating communication between the

⁴ A Simplified Certificate of Origin is issued by customs officials at the border for all exports under the value of 2000 USD that have been produced in a EAC Partner State.

traders and government authorities (Fjeldstad et al., 2020; Lesser & Moise-Leeman, 2009; Ng'asike et al., 2020).

Bribes or “facilitation fees” can start when long lines form at the formal border and can continue along the way as traders make it through relevant offices to pass hurdles and get documents stamped (see Figure 1). Indeed, the degree of waiting has been associated with power; long waits being associated with powerlessness (Schwartz, 1974). Speed money in the form of bribes is often seen to serve the purpose of facilitating economic activity in the face of onerous bureaucracy. However, this form of corruption can be a tax on citizens that most severely impacts the poor who have fewer resources to pay for facilitation (Ang, 2020; Mbate, 2018; Tyson, 2015). Further, this also can constitute evasion of regulations for consumer health, safety and environmental protection and of taxes that are needed for services and that also bring in a dynamic of accountability (Lesser & Moise-Leeman, 2009).

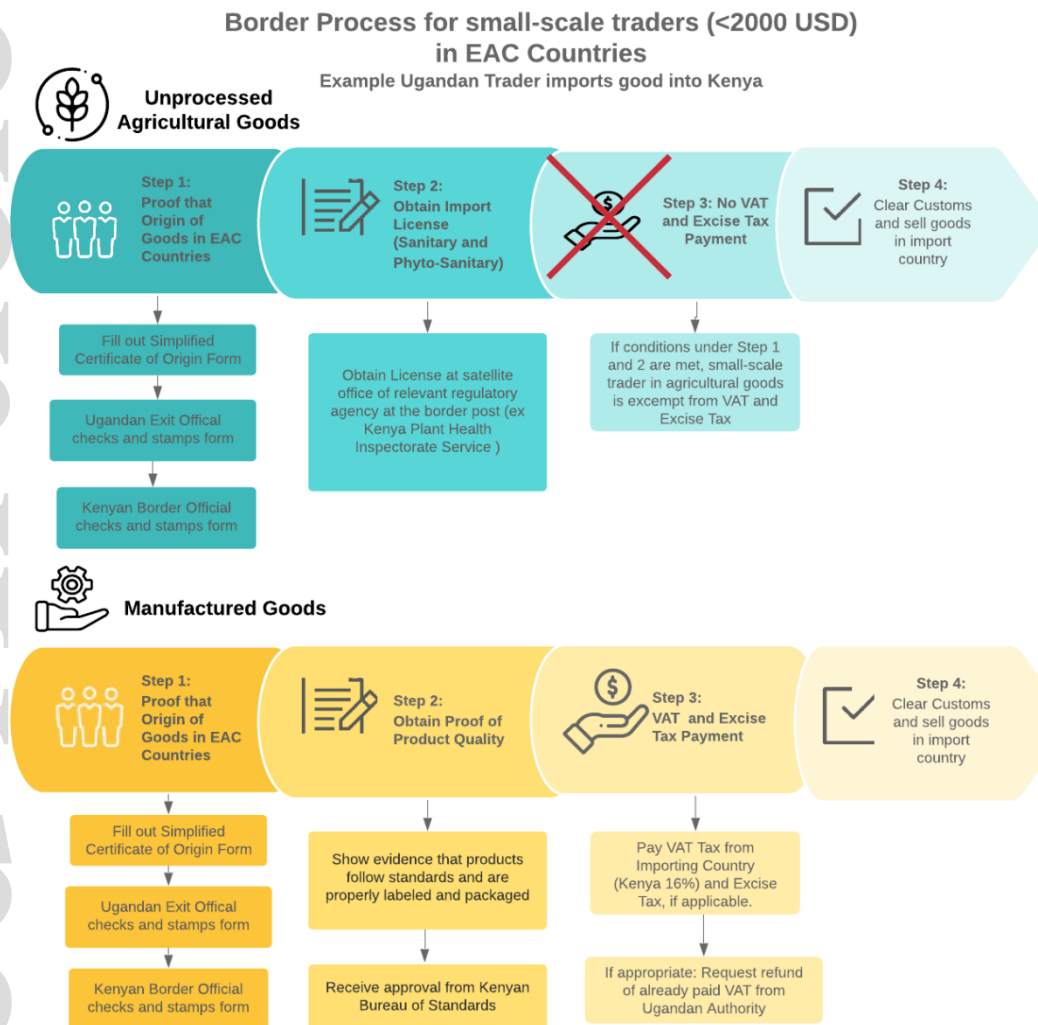


Figure 1: Process at the Kenyan/Ugandan Border for Small-Scale Traders of Agricultural and Manufactured Goods

Based on <http://meac.go.ke/wp-content/uploads/2018/02/EAC-Book-2.pdf>

In the case of small-scale traders, waiting and informal and formal costs at customs can incentivize traders to “exit” in the form of taking more dangerous *panya* routes that Dobler calls “green trade” (2016). These routes involve skirting formal borders, sometimes risking dangerous terrain. This often involves paying “facilitators” and transporters who help with the crossing and also paying bribes to law enforcement. Given that the police on both sides of the border know about these well-established routes, traders routinely encounter them - and sometimes other

security personnel - who target them for bribes. Since this happens outside of official spaces and traders are technically in the wrong for avoiding official posts, these traders are highly vulnerable to coercion and abuse.

Evidence from current studies in Kenya at the Busia border clearly point to the police as the most likely to ask for bribes (Klopp et al., 2021; Sauti East Africa, n.d.; Tyson, 2015; Wiseman, 2020) and the most feared (Klopp et al., 2021). Yet, the role of police in border corruption in East Africa is understudied. Whether bribe systems operate with collaboration between key government actors like the police and revenue authorities is important to better understand. The Kenya Revenue Authority, for example, partners with the police to boost revenue collection (Kolgi, 2011), and some studies suggest collusion between police and customs (Nugent & Soi, 2020) as well as various brokers and customs officers (Tyson, 2015). If this collusion exists through informal networks as was found at the Northwestern Uganda border (Titeca, 2012), its precise nature and extent within different government agencies at different borders merits more attention.

3.3 Gender, corruption and small-scale cross-border trade

Small-scale cross-border trade is profoundly gendered. The vast majority of small-scale cross-border traders, especially in “borders of prosperity”, are women who encounter and engage with predominantly male police and other security personnel, border officials, money changers, transporters and brokers. Although disaggregated statistics are often not available, border officials including police are overwhelmingly male. For example, less than 20% of the police force is female in Kenya and Uganda (PeaceWomen, 2015; UN Women, 2012). Most studies typically cite a figure of around 70% to 90% of the trade being conducted by women, depending on the border (Siu, 2020; Titeca & Kimanuka, 2012; Wiseman, 2020; World Bank, 2015, 2020). This configuration, along with gender dynamics within East African societies where women still face many barriers, discrimination and low status, sets up a number of complex gender dynamics around borders that also genders the experiences of payments/bribes and harassment (EASSI 2015).

Given the problems women face in terms of access to capital, they often are on the smaller end of the small-scale trade crossing operating on foot or using a motorcycle or bicycle transporter (East African Community & Collaborative Centre for Gender and Development 2006, Titeca and Kimanuka 2012, UNDP, 2020). They are engaged less often in prosperous businesses and are more often in what has been called “survivalism” (Titeca and Kimanuka 2012: 18). A 2017 survey of cross-border traders in Tanzania, Malawi and Zambia revealed that 47% believe that informal cross border trade is the *only* livelihood option for them in their area (UNCTAD 2019.)

Gender may also influence route choice. Those who deal more with perishable agricultural produce tend to operate with smaller quantities with smaller profit margins and face more problems in accessing trade information about border procedures. Many therefore prefer to avoid cumbersome and time consuming transactions and interactions with officials at formal crossings (Bensassi et al., 2019, Siu, 2020, UNCTAD, 2019, Ruiter et al., 2017; Akaezuwa et al., 2020; EASSI, 2015; Maleko, 2008). Interestingly, some research suggests that these factors lead many women to take informal routes. This, of course, makes them more vulnerable to punishment like goods confiscation and some kinds of predation including police asking for bribes and sexual harassment or “sextortion” (Ruiter et al., 2017; Akaezuwa et al., 2020, Balongo & Parshotam 2020, World Bank 2020, Jacobson & Joekes, 2019). Interestingly in the case of Ugandans crossing into Kenya, Siu finds men are more likely to choose informal routes and she attributes this potentially to higher bargaining power and better networks (Siu, 2020: 18). More dangerous and longer routes associated with informal pathways also are a problem. In one survey women complained about the hard work carrying loads long distances, which can be exacerbated by informal routes; in contrast, men were more able to use bicycles, lessening the load, while women walk or hire transporters and middle men that become more costly (Titeca and Kimanuka 2012; 15). Further, the gender division of labor in the household including in relation to caring for children, the sick, and elderly tends to fall on women, giving them heavy double duties and making cross-border trade more challenging and waiting very costly. Formal borders, when they lead to longer waits, can lead to hardships for women with their many responsibilities linked to their roles in the household (Akaezuwa et al., 2020). Overall, more research is clearly needed to fully unpack the gender and class dynamics around the choice between formal versus informal border in different locations.

Some argue that border officials target women because of their lack of knowledge of trade rules and procedures which leads to less bargaining power (Ruiter et al., 2017). Studies on the Busia border between Kenya and Uganda suggest that women on average pay more bribes per unit of traded goods than men (Wiseman, 2020). Even if traders know their rights and the formal crossing process, as we have noted, many choose to use the *panya* routes and pay “informal taxes” as part of the accepted cost of taking this option (Maragia, 2020, 2020; Ruiter et al., 2017; Siu, 2020; Titeca & Kimanuka, 2012). Interestingly, practical norms between traders and officials around these payments may vary; in the Uganda-DRC borderlands small amounts of food carried by women are informally “taxed” more lightly or not at all, mirroring formal borders (UNDP 2020). Just as some officials allow trade in small amounts of food to go without extracting a tax, formal

or informal, some traders appear to recognize how the informal payments supplement small salaries of police officers and note that “everyone needs to eat food” (UNDP, 2020, fn 66).

This suggests that the system of bribes that enables small-scale cross-border trading through *panya* routes is accepted as a system of practical norms that facilitates trade. Indeed, as Nugent and Soi note with regard to the Busia crossing, an observer on the Kenyan side of the border will see vehicles lined up to cross the formal border and a steady stream of people walking and riding bicycles or motorcycles on their way to the market in Uganda via informal routes (2020: 446). It is important to note that this widely accepted system generates specific hazards for women when confronted with security personnel including serious gender-based violence (Ityavyar, 2013; Jacobson & Joekes, 2019).

Men may also face harassment and can also face serious violence (Titeca and Kimanuka, 2012). This may be because men may not be as willing to accept harassment from officials as it clashes with their own sense of their status; “a man cannot tolerate that from another man” and some women may have developed stronger negotiating skills having to deal with these kinds of situations in society more broadly (Titeca and Kimanuka, 2012; 35). Here it is interesting to note that cross-border women traders tend to be older and may be able to leverage some elevation in status conferred on them from age, marriage and motherhood, but this also suggests strong barriers against young women entering the trade with high start-up costs and need for mentorship. More established and wealthier women traders may also engage in complex relationships with male brokers, police and customs officials to facilitate their work, and it is important to explore these class differences among women possessing different amounts of wealth as well (Howson, 2012).

Overall, a growing body of work is delving into answering the question of how border experiences including corruption, harassment and violence are gendered and some of this work, particularly in the policy realm, is explicitly centered on addressing gender within small-scale cross-border trade. It is clear that well-documented gender inequalities in East African society mediating status and access to capital, land, information and technology come into play within small-scale cross-border trade, as do historical gender divisions of labor that put women squarely at the center of agricultural production and trade in East Africa (Ekechi & House-Midamba, 1995). Despite the richness of this body of research, much more remains to be understood especially in terms of how to support traders and combat corruption, harassment, and violence in a way that addresses these gender inequalities and women’s and men’s specific experience with them (Goetz, 2007; Hossain & Musembi, 2010; Jacobson & Joekes, 2019).

4 ANTI-CORRUPTION EFFORTS AND POLICY RECOMMENDATIONS

A wide array of anti-corruption recommendations has emerged in the literature to support small-scale cross-border traders. These vary from interventions at the regional, legislative level to localized interventions, like mediating platforms and surveillance cameras. What is also noticeable is that anti-corruption commissions in the region do not appear to play a role and, despite the prevalence of police as a key player in the extraction of bribes and harassment, recommendations within the small-scale cross-border trade policy literature do not directly address this aspect. Instead, as also was noted, the bulk of interventions focus on customs procedures and support for traders and their associations. Below some of the key anti-corruption recommendations in the literature are highlighted and the evidence for them based on the review of research is examined. At the end of each section, we highlight what we consider solid recommendations based on evidence.

4.1 Simplifying trade rules and procedures, streamlining and automating transactions and tariff reduction

The most common focus of reform involves simplifying trade-related regulations and requirements and is often recommended to reduce trade transaction costs from formal procedures (Afrika & Ajumbo, 2012; Balongo & Parshotam, 2020; Lesser & Moise-Leeman, 2009; UNCTAD, 2019). As a recent World Bank report notes,

“a high ratio of small-scale cross-border trade relative to Customs-recorded trade can point towards problems in the ‘formal’ trade channel, such as overly strict regulatory requirements, high taxes (and bribes), or long border-crossing times, that drive traders to avoid official import or export declarations” (World Bank, 2020; 6).

Sui’s study at the Busia and Malaba borders did indeed find a negative association between VAT and export restrictions and choice of going through formal customs (2020). We also see that as borders closed or increased restrictions related to COVID-19, traders perceived that the amounts of bribes extracted from traders at the Busia and Taveta borders increased on informal routes (Klopp et al., 2021; Wiseman, 2020). As Wiseman notes “an equilibrium between costs and bribes extracted across formal and informal routes”, and it is critical to understand their interdependencies (2020: 19). Overall, clear evidence seems to suggest more clarity, simplification, less waiting and lower fees would be helpful to traders. Decreasing the costs at formal crossing points may also serve to bring down the bribe amounts at informal crossings, creating a benefit for all traders.

Recommendation: Continue to simplify and reduce formal border procedures and costs for small-scale cross border traders and communicate this clearly to them. Make formal border areas efficient and friendly to small-scale cross border traders, especially women, to encourage use of formal crossing routes.

4.2 One stop border post

One of the main efforts since the 1990's to streamline and simplify trade regimes and processes involves the One Stop Border Post (OSBP), reforms that are heavily supported by donor funds (Nugent & Soi, 2020). The OSBP does not change the need to go through the different processes but only co-locates the agencies and aims to facilitate cooperation. The OSBP can take many forms globally, but in East Africa it typically involves juxtaposed facilities that house personnel from different agencies in one space (Nugent and Soi, 2020). While legislation setting up the OSBP in the East Africa Community does not explicitly mention reducing corruption as an aim, the reduction of transactions and the open design of the OSBP are expected to reduce corrupt transactions as well as speed up transactions.

Given that these OSBPs have been around for some time, a number of studies have explored their impacts including on wait times and corruption (Tyson, 2018; Siu, 2019; TradeMarkEastAfrica, 2017; Nugent and Soi, 2020). Overall, this research suggests some substantial reduction in time saved crossing the formal border (Siu, 2020; TradeMarkEastAfrica, 2017, 2019; Tyson, 2018). Traders viewed the changes positively, although low skill workers suggested a reduction of jobs involving manual transportation and handling of goods (Tyson 2018: 568). Nugent and Soi suggest that the customs officials at the OSBP in Busia are aware of the need to lure more people through their formal processes competing with informal routes (2020). Siu finds that in Busia and Malaba this does not appear to be happening; according to her survey data, many traders were reluctant to shift borders and the overall impact of OSBP on formalization is ambiguous suggesting other interventions may be necessary to encourage more use of formal borders (2020).

It is important to note that the OSBP reforms were initially designed with large-scale traders in mind ("grey" and "blue" traders in Dobler's categorization), and hence do not specifically target small-scale cross-border traders who have small quantities and use other means including motorcycles, bicycles or walking (Parshotam & Balongo, 2020). Some corrections have been

made to improve functioning for small-scale cross border traders like providing trade information desks that give special attention to those who are not literate and need help.

More work needs to specifically examine how OSBPs could be better tailored to the needs of small-scale traders and also be more gender-sensitive. For example, increasing gender parity among those working at the OSBP, women's information desks and the more open and transparent design could also reduce sexual harassment (Akaezuwa et al., 2020).

Some argue agencies at the border posts still need to do more to harmonize inspection processes, simplify the various documents and forms required to cross, and create more locations to obtain EAC-related information (Balongo and Parshotam, 2020; Muluvi et al., 2012). However, efforts to modernize the processes by which these border posts function have proven to be a challenge (Nugent & Soi, 2020). For example, electronic data has not replaced older, manual practices but has rather added another layer of complexity in some cases (Nugent and Soi, 2020). Odhiambo found that these challenges in modernizing, specifically with the Kenya Revenue Authority, stem from an organizational resistance to change, not a lack of institutional pressure or lack of skills (2015). This resistance, of course, including the continued use of paper even with automation, may be linked to the ways these systems might make taking bribes more challenging.

Recommendation: One Stop Border Posts need further improvement to be better tailored to the specific, gendered needs of small-scale cross border traders. More work could be done to discuss with small-scale traders, especially women, how to make these friendly and efficient places and lower costs including in terms of time and bribes they face in practice at these formal crossing points.

4.3 Improve how complaint mechanisms work and advocate for public data

A number of institutional complaint mechanisms exist that are made available by the country governments and regional organisations like the East African Community. Currently, traders are often expected to report to physical complaints offices, although increasingly reporting is done via the internet, phone or social media. For example, the Kenya Revenue Authority has complaints mechanisms available via Twitter and Facebook as well as phone and the EAC and COMESA allow what are called Non-Tariff Trade Barriers to be reported online or by phone.⁵

⁵ See for example, the website https://www.tradebarriers.org/ntb/non_tariff_barriers

These options are often underutilized for a variety of reasons. A study by the Ethics and Anti-Corruption Commission in Kenya found that ignorance, fear of victimization, “lack of proper facilitation” and fear of authorities are the main reasons why individuals do not report occurrences of corruption (Ethics and Anti-Corruption Commission, 2013). Many traders do not know these mechanisms exist (UNDP, 2017). Traders who do know about the formal complaint processes rarely report incidents due to the low rates at which the complaints are actually addressed (Oiro et al., 2017; Akaezuwa et al., 2020) and the time commitment needed to travel to report them (UNDP, 2017). In interviews, traders “highlighted the need for their harassment reporting to translate into consequences” (Ruiter et al., 2017).

To address these challenges, recommendations include facilitating public education to create more awareness of processes in place (UNDP, 2017), enact harsher punishment for corruption offenders, and decentralize services to make them more accessible (Ethics and Anti-Corruption Commission, 2013), perhaps by establishing national emergency helplines (USAID, 2012). Some also argue for installing surveillance cameras, enhanced lighting and separate bathroom facilities at the border posts as other important upgrades (Akaezuwa et al., 2020; Ityavyar, 2013; USAID, 2012). It might be noted, however, while surveillance at customs might help provide evidence needed or deter corruption, officials often learn to evade cameras and this intervention may lead to more extraction on informal routes to offset losses at the border.

Even when complaint mechanisms are in place and accessible, however, it is unclear how agencies actually act on reports and such data is generally not made public. Sauti East Africa gets reports on its platform that vary from allegations of extremely serious human rights violations to concern, but also praise, for certain border officials, but actual follow-up on problems requires legal support (Interview with Sauti CEO Mary Rowlatt, 2019). Even with such legal support, substantial evidence is required to prosecute officials successfully, and this is not easily acquired; providing pro bono legal support especially for women is one recommendation to address this (Akaezuwa et al., 2020).

Reporting can also be risky. Indeed, in a recent Afrobarometer survey for Kenya which asked “in this country, can ordinary people report incidents of corruption without fear, or do they risk retaliation or other negative consequences if they speak out?” over 80% of those surveyed answered in the negative (Afrobarometer, 2019).

Overall, without evidence of impact, incentives for reporting are often minimal.

It is also worth reiterating that the police have consistently been shown to be the worst culprits in both harassment and bribe extraction in places like Kenya and Uganda⁶. Given their access to instruments of violence and impunity, traders can fear reporting them, and this once again ties into the problem of police reform that tends to be neglected.

Finally, we noted that some traders acquiesce to bribery to avoid the consequences of using informal routes and, as these routes remain attractive, this payment may be widely accepted. For example, a Kenyan trader who uses an informal route asked

“who are you reporting to? And what are you reporting? You are the one who wants to pass. You cannot report anything because it will look like you are reporting yourself. It’s a normal thing to give that bribe” (Interview with Kenyan Trader, Malaba, 2019).

Still, if improving complaints mechanisms serves to improve formal border crossings, this could in theory bring bribes down including at the informal crossing, although the interactive impacts are complex, and this needs more research.

Recommendation: Consolidate and improve complaint mechanisms by making them convenient, anonymous and responsive. Create open access to anonymized complaints for transparency.

4.4 Support strong associations, networks and platforms for engaging government

A number of recommendations urge supporting small-scale cross-border trade by establishing associations for advocacy and facilitating dialogue between all stakeholders (Afrika & Ajumbo, 2012; Ellis et al., 2007; Ityavyar, 2013; Karaki, 2016; Sauti East Africa, n.d.; UNCTAD, 2019; USAID, 2012). Many cross-border traders join traders’ associations to reduce information asymmetry with officials and to create a community (Mbo’o-Tchouawou et al., 2016; Karaki, 2016). Some traders organize informally and create their own networks, but well-established, formal associations do exist.

These established associations act as liaisons between the traders and authorities as well as between the traders themselves. However, members typically include men and larger scale women traders; small-scale women traders rely on informal self-help groups, a gender and class imbalance that needs addressing (Mbo’o-Tchouawou et al., 2016). Associations can partner with

⁶ Although it is interesting that on the Kenyan side the police seemingly take their orders from the District Police Station and not from the KRA compared to the Ugandan side where the URA formally cooperates with the police more closely (Nugent & Soi, 2020).

government agencies to get information and training (EASSI, 2015) as well as act as platforms for traders to voice interests and needs and to inform policy (Karaki, 2016). These organizations could also follow up on complaints and help push for action (Sauti East Africa, n.d.) which in turn, could encourage more traders to speak up.

It is interesting to note that these associations might also be important players during elections given the prevalence of trade within border communities, but this, along with the role of elected representatives, appears to be unexplored. In addition, forums that include trader association representatives and bring all actors together to discuss problems, like the Joint Border Management Committees on the Busia border, could help create more public accountability.

Finally, civil society organisations like EASSI and social enterprises like Sauti East Africa play important roles. Overall, much more research might be done around these forms of civil society and the ways that they might be able to reinforce stronger accountability mechanisms and improve trader experiences while also bolstering official state revenue which ideally leads to improved service delivery.

Recommendation: Promote strong associations and cooperatives to voice the specific needs of small-scale traders, especially women, with government and to help small-scale traders cooperate more to achieve economies of scale and greater political clout that can help push for reforms.

4.5 Training and access to information: Breaking asymmetry

One critical intervention promoted by numerous policy actors from the World Bank to Sauti East Africa involves education and improved access to information about procedures through training and more visible and clear information at customs and on cell phone platforms. As previously noted, a number of studies are emerging to explore the impacts of these interventions (Croke et al., 2020; Wiseman 2018) but evidence does not yet exist that this can help reduce bribes and harassment although it may facilitate trade.

Note that this intervention relies on improving clarity around procedures and tariffs at the national government level with clear communication to the local level. At some borders officials are often uncertain about rules and tariffs and this contributes to heavy reliance on discretionary power (Titeca & Kimanuka, 2012).

Another key reform has been the introduction of Trade Information Officers at Trade Information Desks at the border. This allows traders to talk to someone directly if they have questions.

Currently, it is unclear how well these work. They currently require traders to come to the formal border crossing and to know about the trade desk. Overall, a need exists for more, better and clearly communicated information on costs and procedures at borders.

Recommendation: Reduce the information asymmetry between traders and officials by making rates, restricted items and procedures very clear. Trade information desks at formal customs points might be evaluated and improved based on small-scale trader feedback. Phone-based information systems like Sauti East Africa may be increasingly helpful and should be explored more as a tool for both collecting data on border experiences and corruption and reducing corruption itself.

4.6 Build markets at borders

One new approach to addressing the bribes and delays at borders is to create well-managed cross-border markets. This would allow traders to avoid going through customs procedures of two countries and hence, in theory, by reducing transactions, reduce corruption. The feasibility for such a market is currently being explored as a possibility for Busia by TrademarkEastAfrica, and a current survey of traders in Busia, Malaba and Taveta in Kenya suggests this is a popular idea among traders (Klopp et al 2021). However, as previously noted, trading networks are complex and distributed which means many traders are still likely to look for opportunities at different markets and cross the border using panya routes which suggests a need to rethink how to legitimize this “green trade”.

Recommendation: Innovate to create freer trade zones at borders including by placing markets at borders as a way to cut out some transactions leading to extraction and as a step toward realizing the ideal of enhanced and freer pan-African trade.

4.7 Border police reform

Border police reform has been neglected in relation to small scale cross border traders. Most current police reform focuses on corruption within the border police as a security threat. Yet police also extract from small-scale cross border traders and this focus on extraction may detract from a focus on genuine security concerns that vary by border.

Recommendation: Explore police reform specifically tailored to border areas and cognizant of gendered dynamics. De-securitization of low-risk borders might be explored as a way to reduce police-trader interactions that can lead to fear, harassment and extraction.

5 CONCLUSIONS

A very rich, methodologically varied body of research around corruption, gender and small-scale cross-border trade in East Africa exists and is growing. We see increasing experimentation around diverse research methods and expanding interventions designed to facilitate this trade, address gender inequalities and improve a growing number of anti-corruption strategies. Given the profoundly gendered nature of cross-border trade, it is encouraging to see more work taking up a gender lens, including an exploration of how the experiences of bribery, harassment, and network operations can differ significantly between men and women, as well as on how anti-corruption programs might transform to take these into account. More research might pick up from this body of work to better explore the gender dynamics around the different kinds of networks and interactions that mediate trade across different borders.

Interestingly, a disproportionate amount of the research on small-scale cross-border trade was conducted at the Busia Kenya-Uganda border crossing, presumably due to a relative ease of access and also because of its longstanding economic importance (Khadiagala, 2010; Soi & Nugent, 2017). This suggests the need to focus more detailed research at other less-studied borders in the region and conduct more systematic cross-border comparative studies (Dulo 2011) that recognize the influence of varying levels of security and prosperity.

A great deal of recent research also focuses on the perspectives of the traders themselves and how they build networks and interact with state actors; less survey and ethnographic work, especially in “prosperous borderlands”, focusses on state actors, including customs officials, and explore how they act among themselves in networks with other actors like police, brokers or transporters. Some work has involved interviewing customs officials (García Mora & Sabrina, 2013; Titeca & Kimanuka, 2012) and focuses on how customs responds to changes like automation or reorganisation of procedures (Odhiambo, 2015; Polycap, 2017) but more work needs to be done to understand how customs officials and other actors like brokers and transporters interact at different borders and the extent to which they build varied networks and how these function.

Another gap appears to be the failure to look more carefully at associations, policy networks and platforms, both informal and formal, by which traders voice concern and confront government officials. Anti-corruption activists point to these as important, but they remain understudied. Anti-corruption commissions in the region also seem absent, perhaps suggesting their lack of effectiveness or their primary focus on other forms of corruption taking place in larger urban

areas. Most critically, despite the well-established prevalence of police as a key player in the extraction of bribes and harassment, and the concern that traders as well as local government officials have around this, current literature and policy work fails to directly address this problem; work needs to be done on how police reform might be specifically tailored to different borderlands (Dulo, 2011).

Differing frames for understanding small-scale cross-border trade also appear to lead to different approaches to studying corruption and gender within it. More market-oriented development paradigms tend to view small-scale cross-border traders as individual entrepreneurs or small businesses fighting against a bureaucratic, overly extractive state. Hence, the tendency is to study individual interactions with customs officials with a focus on interventions at the individual level, such as more information or training for traders and automation and simplification of procedures at customs, efforts that aim at changing the power dynamics within what are characterized largely as principal-agent interactions. Yet we have seen that traders organize collective action and networks exist that have both the potential to resist and facilitate different forms of corruption.

Traders are often alternatively conceptualized as highly socially-embedded and engaged in collective fiscal disobedience and alternative, networked border governance (Meagher, 2014; Titeca, 2012; Twijnstra et al., 2014). In this view, traders collude through networks with state actors, like police and border officials in order to facilitate trade, undermining state border control. In this case, such networks -and the payments linked to them- might solve the problem of how to enable bottom-up economic exchange and regional integration that supports livelihoods and brings more prosperous borderlands (Khadiagala, 2010; Meagher, 2014; Twijnstra et al., 2014), a case of “everyday corruption solving a problem” (Marquette & Peiffer, 2018). However, as we have seen, this depends heavily on borders and networks involved; it is possible to overstate networks of cooperation when in fact many interactions may be atomized, coercive and riven with unpredictable dangers as well as violence (Jacobson & Joekes, 2019). Disaggregating collusive and coercive corruption within small-scale cross border trade is important here.

These contrasting theoretical tendencies often rely on different methodologies. Historically-grounded ethnographic approaches with many interviews and longer term fieldwork tend to produce more focus on patterns and systems of networks and exchanges, which involve practical norms and “informal payments” that work to support cross border trade, a trade that in many cases has long historical genealogies and spans communities divided by relatively recent borders. In contrast, more economics-focused literature that tends towards surveys and RCTs

often conceptualizes individual traders as business people and entrepreneurs with corruption seen as a principal-agent problem. These approaches tend to ignore patterns of interactions and practical norms as well as collective action that traders engage in to address systemic problems. However, approaches that look at how patterns of bribes are entrenched or functional can overemphasize collusion and practical norms when evidence is clear that traders often perceive a great deal of coercion and dissatisfaction with many interactions, especially with the police.

An overly micro view can also lead to smaller scale interventions (training, information circulation) that can be important but fail to address bigger questions about broader state reform. This can include stronger accountability mechanisms or police reform that might lower the number of interactions where bribes are asked by officials and perhaps the amount asked, although we can see from the review that corrupt actors adapt and, because of their own social-embeddedness, often react in counter-intuitive ways (such as the police on the West African highways that increased their bribes with an increase in salary and expectations) (Foltz & Opoku-Agyemang, 2015). This speaks to the need for continued, holistic interdisciplinary and multi-methods approaches and collaborations in order to grasp the full complexity of small-scale cross-border trade and better tailor anti-corruption efforts to specific problems facing traders. At the same time, we must move forward with concrete approaches that current evidence suggest are most likely to work to improve conditions for traders and deliver services to border communities with revenues from trade. For as we have seen, no doubt at all exists about how important small-scale cross-border trade is to the well-being of large numbers of people in the region.

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DATA AVAILABILITY STATEMENT

Data sharing not applicable to this article as no datasets were generated or analysed during the current study

ACKNOWLEDGEMENTS

We thank Alissa Krueger who supported the beginning of this review and Ruth Canagarajah, Lornah Wahome, Brian Barasa and Paul Omondi of the Busara Center for Behavioural Economics who conducted some of the interviews for this review. We also thank all those involved in research and policy around small-scale cross-border trade who shared their knowledge in interviews with us particularly Jade Siu, Mary Rowlatt (Sauti East Africa) and David Orega (Sauti East Africa as well as Florence Atieno, Simon Konzolo, Elizabeth Mwangi, Gloria Atuheirwe from TrademarkEastAfrica and all the small-scale cross border traders and workers who took time out of their busy schedules to talk to us. Last but not least, this project is part of the Global Integrity Anti- Corruption Evidence (GI-ACE) programme, funded with UK aid from the UK government.

FUNDING

This paper received support from the Global Integrity Anti-Corruption Evidence (GI-ACE) programme, funded with UK aid from the UK government.

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